

1.

CASE #	CASE NAME	HEARING NAME
CVRI2406558	HOSSENI VS PHILLIP PFEIFER	MOTION TO BE RECEIVED AS COUNSEL

Tentative Ruling:

No tentative ruling; the Court requests appearances, either in person or telephonically.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500434	RAMIREZ VS FORD MOTOR COMPANY	MOTION TO TAX COSTS

Tentative Ruling:

GRANTED. The Court taxes the cancellation fee of \$325 for Defendant's PMK deposition. The Court awards Plaintiffs costs in the reduced but reasonable amount of \$1,793.85.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2200196	SPANN VS BANKERS INSURANCE COMPANY	MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling:

GRANTED. Parties shall meet and confer and propose three possible trial dates on Fridays within 120 days of September 17, 2026.

Factual / Procedural Context:

This is a wrongful death case. Plaintiffs allege that, after a family court dispute involving custody and protective order violation issues, bail agents Herrera and Vargas forcibly entered Decedent David Spann's home while armed on 4/23/21. Herrera allegedly held Decedent at gunpoint while Decedent stood in or near an upstairs bathroom in his underwear holding a knife. Plaintiffs allege that responding police officers escalated the confrontation. Decedent was then shot in the chest and killed. Plaintiffs L.S. and I.S. are Decedent's minor children. Plaintiff Kandis Spann is the children's mother. Plaintiffs William J. Spann and Susan Pearson, Decedent's parents, also assert wrongful death and survival claims. Plaintiffs seek damages from the bail bond and municipal defendants, including the City of Palm Springs and the police officers who were at the scene of the shooting.

Plaintiffs filed this action on 1/18/22. The operative First Amended Complaint (“FAC”), filed 7/15/22, asserts: (1)-(2) assault and battery; (3)-(4) negligence; (5) Bane Act; (6) wrongful death; (7) unreasonable search and seizure; (8) excessive force and denial of medical care; (9) interference with familial relationship; (10) municipal liability for unconstitutional custom or policy; and (11) Public Records Act. Multiple cross-complaints have been filed for implied or total indemnity, contribution, declaratory relief, and apportionment of fault.

The court initially set a 20-day jury trial for 6/6/25. That trial did not proceed. After an appellate stay (5/16/25-10/13/25) and proceedings concerning the related criminal prosecution, the court vacated the trial date on 4/3/26. No replacement trial date is set.

Herrera faced a parallel criminal prosecution arising from the shooting. In *People v. Fabian Hector Herrera*, RCSC Case No. INF2100662-1, Herrera was charged with first-degree murder and related offenses for the death. His criminal trial occurred during February and March 2026. On 3/16/26, the jury convicted Herrera on Counts 2, 3, and 4 but could not for murder, resulting in a mistrial. The murder retrial remains pending with no trial date. Vargas’s related criminal proceeding has concluded. The submitted records state that the criminal court sentenced Vargas on 3/19/26 to 8 years for voluntary manslaughter and attempted kidnapping.

* * *

Now before the Court is Plaintiffs’ renewed motion for trial preference. Plaintiffs previously moved for preference under CCP §36. On 4/16/25, the court denied that motion. As relevant to the minors, the court found that Plaintiffs had not submitted a declaration establishing the necessary facts. In this renewed motion, Plaintiffs principally argue that the minor children are entitled to mandatory trial preference because they are under 14 and have substantial wrongful-death and survival interests. In support, Plaintiffs submit the guardian’s declaration, among others. Plaintiffs also set out new supporting facts concerning the criminal trial and mistrial, an impending 5-year mandatory dismissal, and the vacated trial date to support a renewal request. They alternatively seek discretionary preference, exclusion of the appellate stay and criminal case delays from the 5-year period, and equitable estoppel.

In opposition, Defendants argue that the renewed motion does not satisfy CCP §1008 because Plaintiffs could have submitted the guardian’s declaration with the original motion. They also contend that they will be prejudiced by an accelerated trial due to unresolved criminal proceedings, incomplete discovery, and qualified immunity issues. They do not dispute that the 150-day appellate stay is excluded and acknowledge that additional criminal prosecution delays may qualify for additional exclusion.

In reply, Plaintiffs contend that the vacated trial date, Herrera’s mistrial, and the approaching 5-year deadline justify the renewal request. They assert that the City

Defendants and Justice Bail Bonds Defendants previously opposed severance. They also assert that Defendant City previously proposed setting trial for 1/15/27.

Analysis

I. Request For Judicial Notice

Plaintiffs request judicial notice of 59 court records from this civil action and records from the related criminal proceedings. The Court GRANTS these unopposed requests under Evidence Code §§452(d) and 453.

II. Renewed Application (CCP §1008)

A party may renew a previously denied application based on “new or different facts, circumstances, or law.” (CCP § 1008(b).) The moving party must identify “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law” supporting renewal. (*Id.*) A renewed application also ordinarily requires a showing of “diligence with a satisfactory explanation for not having presented the new or different information earlier.” (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 839-40.)

Here, since the prior ruling, Herrera’s criminal trial occurred. The jury failed to reach a verdict on the murder charge. The criminal court declared a mistrial on that charge. The 6/6/25 civil trial date was vacated. There is no replacement civil trial date set as of yet. The appellate stay has concluded, and the ordinary five-year anniversary is approaching (CCP § 583.310). The renewed motion identifies these circumstances (claimed to be new), and identifies the prior motion, the judge who decided it (Judge Firetag), and the prior ruling.

The declarations concerning the minors’ ages, relationship to Decedent, and litigation interests address facts that already existed when Plaintiffs filed the earlier motion. Nevertheless, the present motion rests on new post-ruling events affecting whether and when the action may proceed to trial. This is sufficient under §1008(b). The Court therefore reaches the merits of the renewed request.

III. Preference (CCP §36(b))

Code of Civil Procedure section 36, subdivision (b) provides:

“A civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole.”

This subdivision of section 36 is mandatory. (See *Peters v. Superior Court* (1989) 212 Cal.App.3d 218, 224.) “Unless the court otherwise orders: [¶]... A party may file and serve a motion for preference supported by a declaration of the moving party that all essential parties have been served with process or have appeared” and a showing of good cause. (CCP §36(c)(1); Cal. Rules of Court, rule 3.1335(b).) Once the motion is granted under subdivision (b), on the basis of the moving party being 14 years of age, the court must set the matter for trial not more than 120 days from the date of the order. (CCP §36(f).) Moreover, there cannot be any continuance beyond 120 days from the granting of the motion for preference, “except for physical disability of a party or a party’s attorney, or upon a showing of good cause stated in the record.” (*Ibid.*) In that case, any continuance must be for no more than 15 days. (*Ibid.*)

Here, the evidence establishes that Plaintiffs L.S. and I.S. are presently 7 and 9 years old. (Kandis Spann Decl. ¶¶ 1-5.) They are Decedent’s biological children and alleged heirs. (*Id.*) They assert individual wrongful death claims for the loss of their father and survival claims as Decedent’s successors in interest. (FAC, ¶¶ 26, 85-91.) Their damages allegations include the loss of Decedent’s companionship, care, protection, training, guidance, and financial support. (*Id.*, ¶ 90.) The minors therefore have a direct and substantial interest in the case as a whole. No opposing party has submitted evidence establishing that either minor lacks a substantial interest in the action. Although Herrera’s unresolved criminal charge presents complications, section 36(b) is mandatory. The court may not otherwise deny mandatory preference merely because the action involves parallel criminal proceedings.

Accordingly, the Court GRANTS the motion. Given the mandatory preference under subdivision (b), the Court need not separately address discretionary preference under subdivision (e) or other alternative requests.